

HOUSE BILL 1459

By Clemmons

AN ACT to amend Tennessee Code Annotated, Title 6;
Title 7; Title 16; Title 40 and Title 55, Chapter 10,
Part 5, relative to drag racing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-10-502, is amended by adding the following as a new subsection (d):

(1) In addition to the seizure and forfeiture provisions under subsection (c), in any county or municipality that has passed a resolution or ordinance authorizing the seizure and impoundment of a motor vehicle observed by law enforcement to have been used to commit the offense of drag racing or to flee after commission of the offense of drag racing, a law enforcement officer may seize and cause such vehicle to be impounded in accordance with this subsection (d).

(2) A county or municipality may pass and implement a resolution or ordinance authorizing the seizure and impoundment of a motor vehicle under this subsection (d); provided, that the county or municipality and such resolution or ordinance must provide for the following:

(A) A minimum number of hours, not to exceed one hundred twenty (120), for which the vehicle is to be impounded before it can be released to the owner upon payment of all reasonable and customary fees relating to the towing and storage of the motor vehicle; and

(B) An administrative and judicial review process that enables the owner of the vehicle to contest the propriety of the seizure, impoundment, and associated fines and fees.

(3) For purposes of this subsection (d):

(A) "Impound" means removing a vehicle to a garage or storage lot designated or maintained by a law enforcement agency; and

(B) "Owner" means a person who holds the legal title of a vehicle or to whom the vehicle is registered, and includes an agent or authorized representative of such person.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.